BEFORE THE PRESIDENT AND COMPANION MEMBERS OF DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION-III, HYDERABAD.

(Under the Consumer Protection Act, 2019)

C.C. No. 127 of 2026

BETWEEN

Mr. Bommagani Arun Sathyadev,
S/o. Swamy, Age: 30 years , Occ: Bank
Employee, R/o. H No. 2971
Laxmakkapalli Warangal, 506302.

Presently residing at H.No. 2-11-58, Rail
Vihar E.C Nagar, Secunderabad, 500051.

..... **Complainant**

AND

1. India Kawasaki Motors Pvt. Ltd,
Having office at :Building B. Multi
Modal Logistics and Industrial Park P-5
phase-II Chakan industrial area,
Khalumbre Khed, Chakan, Pune -410501

2. Orange Auto Pvt. Ltd,
Having office at 8-2 686/6/D/9 Roxana
Fortune, Road No.12,
Banjara Hills, Hyderabad- 500034

3. Abhishek, S/ o Not Known,
Age: Major, Occ: Sales Manager at
Orange Auto Pvt. Ltd, 8-2-686/6/D/9,
Roxana Fortune, Road No.12,
Banjara, Hills, Hyderabad- 500034.

..... **Opposite Parties**

Notice

In the above case copy of Complaint along with documents filed by the Complainant along with Complaint U/s. 35 of Consumer Protection, 2019 is enclosed herewith. You are required to appear before Commission and to submit

your Written Version with an Affidavit along all the documents on which you rely upon on or before 16th April, 2026 at 10.30 a.m.

You are informed that along with a Written Version, an Affidavit should be filed stating that the averments in the Written version are true. All documents on

which you rely should be filed within 30 days from the date of receipt of this notice, after serving a copy/one set on the Complainant/Counsel for the Complainant.

You are further informed that if you fail to appear and submit your Written Version and an Affidavit and documents on or before the above date of the Hearing, the above dispute will be heard and decided in your absence (Exparte).

Give under my hand and seal of the District Commission on this the 17th Day of March, 2026.

//BY ORDER//

SHERISTADAR

District Consumer Disputes
Redressal Commission-III,
Under Consumer Protection Act 2019
Hyderabad TS

Dis. No: 418
Date: 10/4/26

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT:

C.C. NO. 127 OF 2026

GOVERNMENT OF TELANGANA
RECEIVED ON
06 MAR/26
SR No: 687
District Consumer Commission-III, Hyd.

Between:

Mr. Bommagani Arun Sathyadev

...Complainant

And

M/s India Kawasaki Motors and others

...Opposite Parties

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Date: 24/02/2026
Place: Hyderabad

Counsel for Complainant

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT:

C.C. NO. OF 2026

GOVERNMENT OF TELANGANA
RECEIVED ON
06 MAR/26
S/R No: 687
District Consumer Commission-III, Hyd

MEMO OF PARTIES

Between:

1. Mr. Bommagani Arun Sathyadev, S/o. Swamy, Age: 30 years , Occ: Bank Employee, R/o. H No. 2971 Laxmakkapalli Warangal, 506302.

...Complainant

AND

1. India Kawasaki Motors Pvt. Ltd,
   Having office at :Building B. Multi Modal Logistics and Industrial Park P-5 phase-II Chakan industrial area, Khalumbre Khed, Chakan, Pune - 410501

2. Orange Auto Pvt. Ltd,
   Having office at 8-2 686/6/D/9 Roxana Fortune, Road No.12, Banjara Hills, Hyderabad- 500034

3. Abhishek, S/o Not Known
   Age: Major, Occ: Sales Manager at Orange Auto Pvt. Ltd, 8-2-686/6/D/9, Roxana Fortune, Road No.12, Banjara Hills, Hyderabad- 500034

...Opposite Parties

Date:
Place:

Counsel for Complainant

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT:

C.C. NO. OF 2026

Between:

Mr. Bommagani Arun Sathyadev

...Complainant

And

M/s India Kawasaki Motors and others

...Opposite Parties

List of Dates and Events

S.No	Description of Event	Date
1.	The Complainant approached Opposite Parties and received a Quotation for the purpose of purchasing the Ninja Kawasaki motorcycle.	31.08.2025
2.	The Complainant after raising his concerns and removal of certain components received the Final Quotation.	10.09.2025
3.	The Complainant proceed to make payment in three tranches and finally the Opposite Party No.2 sold the said motorcycle and handed it over to the Complainant.	
4.	The Complainant realised that the Opposite Party No.2 have collected extra charges from him unlawfully and hence he contacted them but was denied any refund.	

5.	The Complainant sent mails regarding the issue to Opposite Party No.1 requesting them to resolve the issue.	
6.	The Opposite Parties failed to resolve the issue following which the Complainant engaged an online legal service and sent notices online to the Opposite Parties on behalf of the Complainant.	16.10.2025 26.09.2025
7.	The Opposite Parties failed to resolve the issue and hence the present Complainant is filed aggrieved by the actions of the Opposite Parties.	

Date:

Place:

Counsel for Complainant

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT: NAMPALLY

C.C. NO. OF 2026

Between:

Mr. Bommagani Arun Sathyadev

...Complainant

And

M/s India Kawasaki Motors and others

List of Dates and Events

Filed on:

Filed by:

SHUBHANGA H BHAT

Counsel for Complainant

Address for Service:

Office: at H.No.5-8-342, Flat No.402, Govindu Marvel, Vamsiram Homes, Chirag Ali Lane, Abids, Hyderabad.

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT: HYDERABAD

C.C. NO. OF 2026

GOVERNMENT OF TELANGANA
RECEIVED ON
06 MAR/26
SR No: 687
District Consumer Commission-III, Hyd.

Between:

1. Mr. Bommagani Arun Sathyadev, S/o. Swamy, Age: 30 years , Occ: Bank Employee, R/o. H No. 2971 Laxmakkapalli Warangal, 506302.

   Presently residing at H.No. 2-11-58, Rail Vihar E.C Nagar, Cherlapally Secunderabad, 500051

...Complainant

AND

1. India Kawasaki Motors Pvt. Ltd, Having office at :Building B. Multi Modal Logistics and Industrial Park P-5 phase-II Chakan industrial area, Khalumbre Khed, Chakan, Pune - 410501

2. Orange Auto Pvt. Ltd, Kawasaki Hyderabad Having office at 8-2 686/6/D/9 Roxana Fortune, Road No.12, Banjara Hills, Hyderabad- 500034

3. Abhishek, S/o Not Known Age: Major, Occ: Sales Manager at Orange Auto Pvt. Ltd, 8-2-686/6/D/9, Roxana Fortune, Road No.12, Banjara Hills, Hyderabad- 500034

...Opposite Parties

COMPLAINT FILED U/S 35 OF CONSUMER PROTECTION ACT 2019

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Description of Complainant:

The details and description of the complainant is the same as mentioned in the cause title above and the address for the purpose of service of summons, processes, and notices is that of his counsel Shubhanga H Bhat, Sinde Mohan, R. Anurag, D. Sai Mahitha, Maneesh Reddy, N.S.V. Janaki, S. Punith T. Shashank, C.S.S. Srikar, Surya Sriram, Aravind, A. Kedarnath Advocates, Office at H.NO. 5-8-342 Flat No. 402, Govindu Marvel, Vamsiram Homes, Chirag Ali Lane, Abids, Hyderabad - 500001, Telangana.

Description of Opposite Party:

The details and description of the opposite parties and addresses for the purpose of service of all process, notices and summons as shown is the same in the cause title above.

The Complainant humbly submits as follows:-

1. It is submitted that the present complaint is filed, aggrieved by the Unfair Trade Practices adopted by the Opposite Parties in collecting excessive amounts in the name of "Handling / Processing" charges and "RTA Tax" charges, which are unrelated to the charges payable for the vehicle sold to the Complainant by the Opposite Parties, thereby wrongfully enriching themselves through the said transaction . The unfair and unlawful actions by the Opposite Parties is put forth by way of the present Complaint

2. It is submitted that Opposite Party No. 2, namely Orange Auto Pvt. Ltd., is an authorised dealership engaged in the business of selling motorcycles of

Opposite Party No. 1, i.e., Kawasaki, including the vehicle purchased by the Complainant.

3. It is submitted that the Complainant, being an avid motorcycling enthusiast and desirous of purchasing a Kawasaki Ninja 500_EX500GRFIN_MY25_METALLIC CARBON GRAY_EX500G-B44S-51A_MY25 motorcycle, approached the showroom of Opposite Party No. 2 and made enquiries regarding the said motorcycle, pursuant to which Opposite Party No. 2 furnished a quotation dated 31.08.2025 reflecting a total payable amount of ₹7,51,000/-.

4. It is submitted that at the time of purchase the various amounts involved for the purpose of the purchase of said motorcycle were described in the Quotation including the Ex-Showroom Price, RTA Tax, Insurance, RSA (Road Safety Assistant), Handling charges and K-Care and the Opposite Party No. 2 represented to the Complainant that the same would be forming part of the final invoice.

5. It is submitted that, subsequent to the furnishing of the said quotation, the Complainant requested Opposite Party No. 2 to remove the RSA (Road Side Assistance) component from the quotation, which was an optional add-on priced at Rs. 4,999/-. It is further submitted that the Complainant raised an objection to the Rs 15,000/- mentioned under the head of handling charges, pursuant to which Opposite Party No. 2 stated that several dealerships collect such charges, however, agreed to remove that component as well. It is also submitted that the sales representative of Opposite Party No. 2 informed the Complainant that a discount of Rs. 45,000/- on the MRP was also being

extended, and accordingly a revised and final quotation dated 10.09.2025 was issued, whereby the total payable amount was shown as ₹7,01,080/- .

6. It is submitted that trusting and relying upon goodwill and assurances by the Opposite Parties, the total quotation amount of ₹7,01,080/- was paid to Orange Auto Pvt. Ltd, in three tranches, i.e., (i) an initial booking amount of Rs. 25,000/-(Twenty Five Thousand only) paid via UPI on 12.09.2025 vide Ref No. T250912104546832951923 0; (ii) an amount of Rs. 61,080/- (Sixty One Thousand Eighty only) paid via UPI on 19.09.2025 vide Ref No. T250919124245755162787 0; and (iii) the balance amount of ₹6,15,000/- paid on 20.09.2025 through Loan Disbursement Debit vide Ref No. 860360510000217, Bank of India, and thereafter the said motorcycle was handed over to the Complainant on the same day that is 20.09.2025.

7. It is submitted that, in the days following the purchase, upon a brief perusal of the documents furnished by Opposite Party No. 2, the Complainant, to his utter shock, noticed a charge of "Processing" charges amounting to ₹15,000/- reflected in the final quotation. It is further submitted that the Complainant immediately verified the tax invoice and other supporting bills and records provided to him and found no mention, invoice, receipt, or break-up for the said Rs. 15,000/-. It is submitted that when the Complainant had raised the issue of handling charges, that too for a very new bike, the Opposite Parties have camouflaged the same and placed it under the head of "Processing" charges. As such, equating "Handling" charges as "Processing" charges being one and the same and drawing extra monetary benefit out of the same, the

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above actions by the Opposite Parties qualifies to be an unfair trade practice aimed at cheating the customer, who in the present case is the Complainant.

8. It is submitted that, later on upon enquiring with the Road Transport Authority of Telangana, it has come to light that "Handling/Processing" charges are illegal and the collection of such charges is prohibited by the Government. Therefore, the opposite parties have been unfair in its business practices and when the same was flagged to them, orally, the said charge has been levied under a different of head i.e., "Processing" charges which appears on the face of it to be a trade gimmick being played on the innocent customer, thereby falling within the meaning of unfair trade practices.

9. It is submitted that upon becoming alert and cautious due to the aforesaid discrepancy, the Complainant examined and scrutinised all the documents provided to him by the Opposite Parties and upon further inspection, the Complainant noticed that the RTA tax amount charged in the Quotation amounts to Rs. 1,11,816 which is Rs. 2481/- more, compared to the amount of Rs. 1,09,335 charged by the RTO Authority as clearly shown in the RTA invoice. It is submitted the above captioned actions to deceive the Complainant, coupled with the Opposite party No.2's collection of extra charges under the RTA Tax head without a clear breakup and non-transparent billing amounts to Unfair Trade Practice and deficiency in services. The Opposite Parties representing to the Complainant that they would handle the registration charges only in order to deceive the customer and make wrongful gain is another form of trade gimmick that is being used by the Opposite Party to cheat the Complainant.

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10. It is submitted that, upon this realisation, the Complainant immediately contacted Opposite Party No. 2 to enquire about the discrepancies and sought transparency by requesting a detailed cost break-up. However, there was no response for the said request and it is further submitted that the sales representative, Mr. Abhishek, Sales Manager at Orange Auto Pvt. Ltd, categorically informed the Complainant that no amount would be refunded under any circumstances. He further stated that the dealership usually charges customers up to ₹50,000/- under such heads and, therefore, the Complainant should not pursue or escalate the matter any further.

11. It is submitted that, being aggrieved by the aforesaid actions of the Opposite Parties, the Complainant addressed several emails between 26.09.2025 and 06.10.2025 to Opposite Party No. 1, i.e., Kawasaki India, raising concerns regarding the illegal charges levied upon him. However, Opposite Party No. 1 merely responded with formal apologies and false assurances that the issue was being looked into. These responses were only an attempt to delay the matter, and it became evident that Opposite Party No. 1 had no intention of providing any effective solution to the Complainant.

12. It is submitted that, being aggrieved by the aforesaid actions, the Complainant engaged an online legal service provider i.e, Fastinfo Legal Services Pvt. Ltd., which issued legal notices dated 16.10.2025 and 28.11.2025 on behalf of the Complainant to the Opposite Party No. 1 in respect of the present grievance. However, the Opposite Parties have deliberately failed to respond to the said notices.

13. It is submitted that what was expected to be a dream-come-true moment of purchasing a Ninja Kawasaki bike instead turned into a distressing and frustrating experience leaving the Complainant with no other option but to approach this Hon'ble Forum seeking appropriate reliefs.

14. It is submitted that the Complainant reserves his right to raise the aforesaid issues before the competent authorities, including the concerned tax and RTO authorities, so that similarly situated consumers may also be protected and appropriate action may be taken in accordance with law. The Complainant further craves leave of this Hon'ble Commission to file appropriate applications seeking production and calling of relevant records, including records pertaining to the tax/RTO component, as may be necessary for proper adjudication of the present Complaint.

CAUSE OF ACTION

15. The cause of action first arose on 31.08.2025 when the Opposite parties furnished a quotation to the Complainant containing "Handling" charges, on 10.09.2025 when the Opposite Parties provided the final Quotation camouflaging "Handling" charges as "Processing" charges, on 20.09.2025 when the Complainant paid consideration of Rs. 7,01,080 (Seven Lakh One Thousand Eighty Rupees), and when the complainant realised he had been cheated and found no invoice, bill or document to substantiate the excessive charges under the "Handling/Processing", further the cause of action arose when the Complainant, upon further inspection, realised he has been charged excessive under the "RTA Tax" head, further arose when the Complainant asked for an

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explanation and refund of the said excessive and illegal charges and was denied the same , on 16.10.2025 and 28.112025 when online Legal Notices were sent to refund the excessive charges levied on the Complainant and there was no response from the Opposite Parties for the same.

TERRITORIAL JURISDICTION

16. It is submitted that the complainant resides in H No. 2971 Laxmakkapalli Warangal, 506302 and the incident took place at Opposite Party No. 2 premises i.e., Orange Auto Private Ltd, Hyderabad, having office at 8-2-686/6/D/9, Road No.12, Banjara Hills, Hyderabad- 500034, which falls within the territorial jurisdiction of this Hon'ble Commission to entertain this complaint.

PECUNIARY JURISDICTION

17. It is further submitted that the consideration paid by the Complainant for the services of the Opposite Parties is Rs. 7,01,080 (Seven Lakhs One Thousand Eighty), which falls under the pecuniary jurisdiction of this Hon'ble Commission under Section 34 of the Consumer Protection Act, 2019.

LIMITATION

18. It is submitted that the Complaint is made within Two Years from the date of cause of action, hence it is well within the limitation.

COURT FEES

19. The Complainant submits that the Court fee for the present Complaint amounts to Rs. _____/- as prescribed for Complaints wherein the consideration amount of the goods/services availed is above Rs. 5,00,000 and

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less than Rs. 10,00,000/-. In the present case the consideration amount is Rs. 7,01,080/-.

DECLARATION

20. The Complainant submits that there is no suit pending nor has any suit been adjudicated upon the same subject matter between the parties by any other competent Court of Law.

GOVERNMENT OF TELANGANA
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PRAYER

21. In light of Facts and Circumstances of the case as enumerated above, it is therefore humbly prayed that this Hon'ble Commission may be pleased to

a) To refund the amount of 15,000/- (Fifteen Thousand only) which was paid as handling/processing charges to Opposite Part No.2.

b) To refund the excess amount of Rs. 2,481 (Two Thousand Four Hundred and Eighty One) which was overcharged by Opposite Party No.2 under the RTO Head.

c) To pay Rs. 2,00,000/- (Two Lakhs) as compensations for the Unfair Trade Practices carried out by the Opposite parties, for which they are jointly and severally liable.

d) To pay Rs. 1,00,000/-(One Lakh) as compensation for mental agony and pain caused due to the illegal actions of the Opposite Parties, for which they are both jointly and severally liable.

e) Any other Costs as this Hon'ble Commission deems fit and proper in the circumstances of the case.

Date:

Place:

Complainant

VERIFICATION

I, Mr. Bommagani Arun Sathyadev, S/o. Swamy, Age: 30 years , Occ: Bank Employee, R/o. H No. 2971 Laxmakkapalli Warangal, 506302 , presently residing at H. No. 2-11-58, Rail Vihar E.C Nagar, Cherlapally Secunderabad, 500051, do hereby declare that the contents of the Paras 1 to 21 are true to the best of my knowledge, belief and information, and the other paras and prayers sought are as per the legal advice given to me which I believe to be true and correct. Hence, verified at Hyderabad on this the ___ day of February, 2026.

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Complainant

Date:

Place:

Counsel for Complainant

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT:

C.C. NO. OF 2026

Between:

Mr. Bommagani Arun Sathyadev

...Complainant

And

M/s India Kawasaki Motors and others

...Opposite Parties

List of Documents

S. No	Description of Document	Date
1.	Copy of First Quotation furnished to the Complainant	.2025
2.	Copy of Final Quotation furnished to the Complainant	10.09.2025
3.	Proof of Payment made to Opposite Party No.1 in three tranches	Colly
3.	Invoice and Bills received by the Opposite Parties after the purchase	Colly
4.	Mails sent to Opposite Party No.1	Colly
5.	Legal notice sent to Opposite Parties	Colly
6.	Government Circular No. 59/IT/2016	30.01.2016
7.	Government Circular No. 2045/S/2016	03.12.2019
8.	Copy of Aadhaar Card of Complainant	

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Complainant

Date:

Place:

Counsel for Complainant

BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
AT: HYDERABAD

C.C. NO. OF 2026

Between:

Mr. Bommagani Arun Sathyadev

...Complainant

And

M/s India Kawasaki Motors and others

... Opposite Parties.

Complaint filed under Section 35 of the Consumer Protection Act, 2019

Filed on:

Filed by:

SHUBHANGA H BHAT

Counsel for Complainant

Address for Service:

Office: at H.No.5-8-342, Flat No.402, Govindu Marvel, Vamsiram Homes, Chirag Ali Lane, Abids, Hyderabad.